

STATE OF NEW YORK

8916--A

IN SENATE

January 15, 2026

Introduced by Sen. BORRELLO -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to permitting the village of Mayville board of trustees to transfer the funds of the Mayville ambulance reserve fund and the Mayville fire and rescue equipment reserve fund to the newly formed North Lake Fire District reserve accounts

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings. Whereas the village of Mayville board
2 of trustees established a fire and rescue equipment reserve fund and
3 ambulance reserve fund to replace and repair equipment for the Mayville
4 fire department. The fire and rescue equipment reserve fund was estab-
5 lished on February 13, 2018, and was funded entirely by tax revenue from
6 the village of Mayville for the purpose of purchasing firefighting and
7 rescue apparatus and the ambulance reserve fund was established on
8 February 6, 2024, and was funded entirely by billing for emergency
9 medical services (EMS) calls performed by the village of Mayville fire
10 department. Upon the dissolution of the Mayville fire department and
11 merger with the Hartfield fire district and Dewittville fire district to
12 create the North Lake fire district effective September 3, 2024, it was
13 the intention of the Mayville fire department to transfer such funds to
14 another capital reserve fund operated by the newly created North Lake
15 fire district which services the taxpayers of the village of Mayville as
16 well as other taxpayers outside of the village.

17 § 2. Transfer authorized. Notwithstanding paragraph c of subdivision 9
18 of section 6-c of the general municipal law, the village of Mayville
19 upon resolution and permissive referendum may transfer such funds of the
20 village of Mayville fire department's fire and rescue equipment reserve
21 fund and ambulance reserve fund to the North Lake fire district reserve
22 fund provided the funds transferred are used only for North Lake fire
23 district reserve fund purposes and provided the purposes for creating
24 the fire and rescue equipment reserve fund and ambulance reserve fund

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 have been performed and any outstanding claims arising from the acquisi-
2 tion of such equipment has been paid from the funds.

3 § 3. Severability. If any clause, sentence, paragraph, subdivision,
4 section or part of this act shall be adjudged by any court of competent
5 jurisdiction to be invalid, such judgment shall not affect, impair, or
6 invalidate the remainder thereof, but shall be confined in its operation
7 to the clause, sentence, paragraph, subdivision, section or part thereof
8 directly involved in the controversy in which such judgment shall have
9 been rendered. It is hereby declared to be the intent of the legislature
10 that this act would have been enacted even if such invalid provisions
11 had not been included herein.

12 § 4. This act shall take effect immediately.